

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

TOMMY FELICIANO,

Plaintiff,

-against-

CITY OF NEW YORK; Sergeant CHRISTOPHER
MUSA; LUIS FERNANDEZ; TRAVIS FRASER;
LASHONDA POTTERFIELD; CHRISTOPHER
SIANI; DEREK ALMEIDA; and JOHN and JANE
DOE 1-10,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates KINGS
County as place of venue

SUMMONS

The basis of the venue is:
Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: February 1, 2022

New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK

By: _____

Gabriel P. Harvis, Esq.,

Attorneys for the Plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Defendant:**CITY OF NEW YORK**

100 Church Street

New York, NY 10007

Sergeant CHRISTOPHER MUSA

NYPD 73rd Precinct

1470 East New York Ave

Brooklyn, New York 11212

LUIS FERNANDEZ

1 Police Plaza

New York, NY 10007

TRAVIS FRASER

Patrol Borough Brooklyn North

C/O 1 Police Plaza

New York, NY 10007

LASHONDA POTTERFIELD

Patrol Borough Brooklyn Public Safety

Teams

C/O 1 Police Plaza

New York, NY 10007

CHRISTOPHER SIANI

Gun Violence Suppression Division

Zone 01

C/O 1 Police Plaza

New York, NY 10007

DEREK ALMEIDA

Police Laboratory

C/O 1 Police Plaza

New York, NY 10007

Failure to respond will result in a judgment against you by default and interest from May 14, 2020.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

TOMMY FELICIANO,

Plaintiff,

-against-

CITY OF NEW YORK; Sergeant CHRISTOPHER
MUSA; LUIS FERNANDEZ; TRAVIS FRASER;
LASHONDA POTTERFIELD; CHRISTOPHER
SIANI; DEREK ALMEIDA; and JOHN and JANE
DOE 1-10,

Defendants.

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VERIFIED
COMPLAINT

Plaintiff TOMMY FELICIANO, by his attorneys, ELEFTERAKIS,
ELEFTERAKIS & PANEK, complaining of the defendants, respectfully alleges:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
3. Jurisdiction is conferred by 42 U.S.C. § 1983 and the laws of the State of New York.
4. On or about February 16, 2021, and within ninety (90) days after the claim arose, plaintiff served, presented, and filed a duly sworn Notice of Claim, in writing, upon

defendants in accordance with General Municipal Law 50-e, and which set forth the following:

- a. the nature of the claim;
 - b. the time when, place where, and manner in which the claim arose; and
 - c. the items of damages and injuries sustained.
5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claim, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claim.
6. The City of New York examined plaintiff pursuant to G.M.L. § 50-h on or about June 15, 2021.
7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

PARTIES

8. Plaintiff TOMMY FELICIANO is a resident of the State of New York.
9. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD

personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. The individual defendants were, at all relevant times, employees of the NYPD. In their interactions with plaintiff these defendants were acting in the capacity of agent, servant and employee of defendant City of New York and acted within the scope of their employment and under color of state law. These defendants are sued in their individual capacities.

11. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. John and Jane Doe 1-10 are sued in their individual capacities.

12. At all times here mentioned, the individual defendants were acting under color of state law.

STATEMENT OF FACTS

13. On May 14, 2020 at approximately 5:00 p.m., plaintiff was lawfully driving in the vicinity of the Southeast corner of Stone Avenue and East New York Avenue in Brooklyn, New York when he was pulled over by the defendant officers.

14. Defendants unlawfully searched plaintiff's vehicle and falsely claimed to have recovered a firearm in the possession of plaintiff.

15. Defendants falsely arrested and maliciously prosecuted plaintiff on gun possession charges, requiring plaintiff to repeatedly appear in court.

16. Plaintiff was arraigned and bail was set.

17. Plaintiff was held until approximately August 18, 2020.

18. All charges were dismissed on or about November 23, 2020.

19. As a result of the foregoing, Mr. Feliciano suffered, *inter alia*, emotional distress, mental anguish, fear, pain, loss of liberty, loss of wages, anxiety, embarrassment and humiliation.

FIRST CLAIM

Unlawful Stop and Search

20. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

21. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

22. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM

False Arrest

23. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

24. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

25. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM
Malicious Prosecution

26. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

27. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

28. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

29. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FOURTH CLAIM
State Law Malicious Prosecution

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

31. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

32. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

33. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

34. All charges were terminated in plaintiff's favor.

35. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

36. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM**Denial of Constitutional Right to Fair Trial**

37. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

38. The individual defendants created false evidence against plaintiff.

39. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

40. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, the individual defendants violated plaintiff's right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

41. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SIXTH CLAIM**Negligence; Negligent Hiring/Training/Retention**

42. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

43. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a

reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

44. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

45. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

46. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

47. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

48. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

49. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

50. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

51. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

52. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

EIGHTH CLAIM
§ 1983 Failure to Intervene

53. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

54. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

55. Accordingly, the defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

56. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM**Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

57. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

58. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

59. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

60. The Defendant Officers, while in uniform, unlawfully seized plaintiff.

61. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CLAIM**Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

62. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

63. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

64. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

65. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

66. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

67. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CLAIM**City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

68. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

69. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

70. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

71. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

72. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

73. The Defendant Officers, while in uniform, unlawfully seized, stripped and assaulted plaintiff.

74. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CLAIM

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

75. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

76. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

77. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

78. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

79. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

80. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

82. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CLAIM
Punitive Damages & Attorney's Fees

83. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

84. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

85. Accordingly, plaintiff is entitled to punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiff, TOMMY FELICIANO, demands that judgment, compensatory, exemplary and punitive, in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs.

Dated: February 1, 2022
New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: _____


Gabriel P. Harvis, Esq.
80 Pine Street, 38th Floor
New York, New York 10005
(P)(212) 532-1116
(F)(212) 532-1176

Attorneys for plaintiff

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and a partner of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the plaintiff herein, affirms:

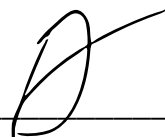
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that plaintiff does not presently reside within the county in which your affiant maintains his law office or is presently outside the county in which your affiant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: New York, New York
February 1, 2022



Gabriel P. Harvis, Esq.